

## 25STCV16399 25STCV16399

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-09-17

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Case Number: 25STCV16399 Hearing Date: September 17, 2026 Dept: 316

### BACKGROUND

On June 5, 2025,

Plaintiff Sumalai Sapphathoon filed a complaint against

Defendants Ampaunchit Wiwatniwong, Nittaya Bivens, Somsri Lertsmitivanta, Arisa

Wiwatniwong, and DOES 1-10. The complaint alleges that Defendants owe

Plaintiff \$1,405,671.39 based on a judgment in a prior case and are attempting to

transfer assets to avoid paying the judgment.

On October 24, 2025,

Defendant Nittaya Bivens (hereinafter referred to as "Defendant") filed a

Motion to Quash Service of Summons.

On April 7, 2026,

Plaintiff filed a Proof of Publication as it relates to Defendant.

On April 28, 2026, the

Court issued a Minute Order denying Defendant's Motion to Quash.

On May 11, 2026, Plaintiff

filed a Notice of Ruling on Defendant's Motion to Quash.

On May 20, 2026, Defendant

filed a Declaration of Demurring or Moving Party in Support of Automatic

Extension.

On May 27, 2026, Plaintiff

filed a Request for Entry of Default against Defendant. This request was

rejected for this stated reason – “Other - Declaration of Demurring or moving party in support of automatic extension filed on 5/20/26.”

On June 23, 2026,  
Plaintiff filed a Motion for Entry of Default.

On June 24, 2026,  
Defendant filed a demurrer to the complaint and motion to strike.

On September 4, 2026,  
Defendant filed an opposition.

On September 10, 2026,  
Plaintiff filed a reply.

#### TENTATIVE RULING

Plaintiff's Motion for  
Entry of Default is DENIED.

#### LEGAL STANDARD

When a party is served by publication, service is considered complete on the 28th day after first publication. (See Code Civ. Proc., § 415.50, subd. (c); Gov. Code, § 6064.) After the 28th day, the defendant must file a responsive pleading within 30 days. (See Code Civ. Proc., § 412.20, subd. (a)(3).) If a party fails to respond by the 30th day, then the clerk shall enter the default of the defendant. (See Code Civ. Proc., § 585, subd. (c).)

When a defendant files a motion to quash service of summons, “[t]he service and filing of the notice shall extend the defendant’s time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant’s time to plead for an additional period not exceeding 20 days.” (Code Civ. Proc., § 418.10, subd. (b).) “No default may be entered against the defendant before expiration of his or her time to plead, and no motion under this section. . . .” (Code Civ. Proc., § 418.10, subd. (d).)

## DISCUSSION

The Court finds that the clerk's rejection of Plaintiff's request for entry of default was proper because Defendant had timely filed a responsive pleading before her deadline to respond had expired. Therefore, the Court will not enter default against Defendant.

Defendant was served with a written notice of entry of an order denying her motion to quash on May 11, 2026. Accordingly, Defendant had until May 26, 2026, to file a responsive pleading. (See Code Civ. Proc., § 418.10, subd. (b).) Defendant filed her Declaration of Demurring or Moving Party in Support of Automatic Extension on May 20, 2026, six days before her deadline to respond. Therefore, Defendant timely filed the extension declaration. For this reason, default shall not be entered on the ground that Defendant untimely filed a responsive pleading. (See Code Civ. Proc., § 418.10, subd. (d).)

Plaintiff argues that the Court should ignore the motion to quash and timelines stemming therefrom and find that Defendant failed to respond within the time required by service by publication, which Plaintiff undertook while the motion to quash the purported personal service was pending. The Court does not find a basis to ignore the motion to quash, the Court's ruling on the motion or the response timing that flows from that ruling. Further, following Plaintiff's approach would contravene the policy in favor of deciding cases on the merits and of relief from default. It would also likely only produce a default that would be subject to a motion to vacate whether based on excusable neglect in relying the timing of the then pending motion to quash or attorney mistake.

Plaintiff also seeks to rely on alleged deficiencies in Defendant's extension declaration. (See Reply, p. 2:1-10.) Specifically, Plaintiff contends that Defendant's meet and confer attempt was made less than five days before their responsive pleading was due. (See Reply, p. 2:7-10.) However, Defendant's meet and confer attempt was on May 7, 2026, 19 days before her responsive pleading was due on May 26, 2026. Therefore, this contention is unavailing. Plaintiff also contends that Defendant's meet and confer efforts were defective. (See Reply, p. 2:2-6.) However, this motion is not the proper mechanism by which to judge the effectiveness of Defendant's meet and confer efforts. Said issue should be

addressed in opposition to the demurrer itself. Rather, this motion is meant to determine whether Defendant timely filed all relevant documents and if default was improperly denied. Given that Defendant filed her extension declaration before her deadline to respond, the clerk's decision to reject Plaintiff's default request was proper. (See Code Civ. Proc., § 418.10, subd. (d).)

#### CONCLUSION

For these foregoing reasons, Plaintiff's Motion for Entry of Default is DENIED.